

3. Plaintiff's opposing arguments fail as to causation.

Although Plaintiff argues in the Opposition that Defendants caused Plaintiff's injuries, there is no evidence to support this proposition. The statement that "Plaintiff establishes a causal link between the dangerous condition and the injury" (Opposition, page 14, lines 27-28) falls short of satisfying Plaintiff's burden of establishing triable issues of material fact on the "causation" issue.

4. Plaintiff's additional facts do not create a triable issue.

Plaintiff sets forth 34 additional material facts, but they fail to create triable issues of material fact sufficient to defeat the Motion. Many of the additional facts are centered on explaining how the subject accident occurred and arguing, via their expert Mr. Avrit, that the stairs presented an unsafe condition. However, as referenced above, the Avrit declaration is full of inadmissible legal conclusions and improper expert opinion. Moreover, none of the additional facts show any triable issues of fact as to the "breach" or "causation" elements of the Negligence and Premises Liability causes of action.

Plaintiff's Evidentiary Objections #1-11 to the Declaration of Gregory Martin OVERRULED.

Defendant's Evidentiary Objections #1-4 to the Declaration of Brad P. Avrit SUSTAINED.

Plaintiff's request in the alternative to treat the Motion for Summary Judgment as a Motion for Judgment on the Pleadings is DENIED, as the court does not make a finding that the complaint is insufficient as a matter of law.

Court trial confirmed for September 11, 2026, pending submission of proposed order and proposed judgment.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501209	HESARI VS BAMBOO INSURANCE COMPANY, AN UNKNOWN ENTITY, ET AL.	DEMURRER ON 2ND AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY (OVER \$35,000) OF SERAJ MESBAH HESARI BY SUTTON NATIONAL INSURANCE COMPANY, AN UNKNOWN ENTITY

Tentative Ruling:

No opposition filed.

Defendant Bamboo IDE8 Insurance Services, LLC (sued as Bamboo Insurance Company) Demurrer to the 3rd Cause of Action SUSTAINED, without leave to amend.

Defendant's request that the demurrer apply to Paragraph 49 of Plaintiff's Second Amended Complaint and any implied covenant/bad faith claim, that is OVERRULED, as a demurrer is the improper method for striking of a paragraph/portion of a complaint.